



STEPS YOU MUST TAKE IF YOUR CLIENT WAS NOT BORN IN THE U.S.

(Regardless of Current Citizenship)

All defense counsel must ask every single client if they were born in the United States (i.e. not just “what is your citizenship”, not just “what is your immigration status”). Whenever a client of a ACP Attorney or Public Defender indicates they were born outside the United States (and therefore may not be a U.S. citizen), a referral should be made to the Regional Immigration Assistance Center (“RIAC”) to obtain expert immigration advice.

But even ***before*** you receive detailed advice from RIAC, there are important actions you must take and issues you must be aware of, explored below:

STEP 1: Until You Have Received Case-Specific RIAC Advice, You Must Be Aware of the Following:

- Even if your client tells you that they are a U.S. citizen, you may need to make further inquiries unless they can establish they were born inside the U.S. [Click here for our advisory.](#)
- **DO NOT accept any plea or enter any diversion program** – no matter how favorable. Even if your client tells you they want to accept an offer without waiting for RIAC advice, they may not be able to give you their informed consent to proceed (without understanding the immigration consequences, they cannot consent to them). Even without a conviction, doing so could make your client deportable (see the [RIAC Advisory](#)).
- **You MUST object to / instruct your client not to answer any on-record questions about your client’s immigration status or history.** [Click here for our advisory.](#)
- If your client is - or will be - **subject to an order of protection** of any kind, ***IMMEDIATE ACTION BY YOU IS NEEDED***. Please review the [RIAC Advisory on Orders of Protection](#).
- **DO NOT advise your client to accept an ACD unless you have first reviewed the [RIAC ACD Advisory](#)** with your client.
- **DO NOT use the court’s interpreter to speak with your client.** A separate, independent interpreter is required. See, the [RIAC Advisory on Court Interpreters](#).
- **DO NOT instruct your client to contact RIAC directly** – we are your legal expert, not your client’s immigration attorney.
- **DO NOT allow your client to attend a probation interview alone** without specific RIAC advice. Admitting to certain conduct (such as drug use or their immigration history) could make them deportable or federal criminal liability.

STEP 2: What To Do If You Are Aware Of An ICE “Warrant” or Detainer

Law enforcement, ADA’s, Judges and court staff may not be aware of laws proscribing *their* involvement with ICE. As such, it may be critical for counsel to point out the following:

1. **ICE “Warrants” and Detainers Are Meaningless For NY Legal Purposes: NY Law Enforcement and Courts Are Prohibited From Honoring Them.** Arresting or detaining someone based on an ICE warrant or detainer (as opposed to a signed *judicial* warrant) constitutes unlawful imprisonment. *People ex rel. Wells v. DeMarco*, 88 N.Y.S.3d 518, 168 A.D.3d 31, 2018 N.Y. Slip Op. 7740 (N.Y. App. Div. 2018).
2. **ICE’s Ability to Operate in or Near Courts is Legally Circumscribed; Anyone Assisting Them Regarding Civil Immigration Enforcement Violates NY Law.** Anybody (1) assisting or facilitating a civil arrest of (2) a party or witness (3) in court **or** travelling to or from court, commits unlawful imprisonment **and** contempt of court. N.Y. Civ. Rights Law § 28(3).
3. **New York Courts and their staff are required to comply with specific protocols regarding ICE enforcement actions in or near courts.** ([Click here for the current protocol](#)).
4. **Counsel can, should - and in some cases must - object to any action to arrest or detain their client in violation of 1-3 above, by explaining to the relevant party why it contravenes NY State Law.** (Important note: counsel may not physically obstruct any arrest, hide a client, assist them from evading arrest - including making any misrepresentations).
5. **If an ICE “warrant” or detainer exists and your client will be released, ask for nominal bail!** In this situation, you should generally (1) request nominal bail under CPL 530.40(5), (2) tell your client (and their family) not to post bail and (3) contact RIAC for urgent, specific advice.

STEP 3: Make Sure Your Client Knows *Their* Rights

If your client appears to be at risk of ICE enforcement, you should make sure that:

- Your client is aware of their rights - *especially* (1) the **difference between judicial and administrative immigration “warrants”** (administrative “warrants” impose no legal obligations whatsoever on the subject); (2) their **right to remain silent** - in particular, that this right applies to ICE, regardless of location (e.g. if ICE appear at their doorstep, on the street, in a jail); and (3) their **right to deny law enforcement entry to private spaces without a judicial warrant**. See, “*Know Your Rights with ICE*” flyers in [English](#) and [Spanish](#) (contact us for additional languages);
- Your client has a plan in place in case they are arrested (having important telephone numbers on a piece of paper with them at all times, having a plan to pick up children from school, medical permissions, temporary guardianship, powers of attorney etc.)

STEP 4: Contact RIAC For Advice, Submit Intake Form

[Click here for our intake form](#), which you must fill in with your client. Please be aware that we will need (1) all charging documents (with supporting depositions, (2) your client's fingerprint RAP sheet and (3) all immigration documents your client has.